

(*Fuentes*, 19 Cal.5th at pgs. 104-05.)

The facts of *Fuentes* are significantly distinguishable from the facts of the instant case. The holding of *Fuentes*, even if it had been decided after the hearing on defendants' motion, does not warrant a different result.

Finally, plaintiff requests relief under CCP § 473(b) because the tentative ruling was adopted without oral argument due to plaintiff's untimely request. Section 473(b) permits a court, in its discretion, to "relieve a party from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Civ. Code. Proc., § 473(b).) The moving party bears the burden to show a specific ground under the statute and to establish diligence and lack of prejudice. (*Id.*)

Given that plaintiff's motion is not supported by declaration, she fails to demonstrate any mistake, inadvertence, surprise or excusable neglect warranting relief from the court's prior order. Nor does plaintiff establish any likelihood of a different outcome if she had timely requested oral argument.

Plaintiff's motion for reconsideration is denied.

16. S-CV-0055969 Zick, Tanner v. Burachek, Zhanna

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

17. S-CV-0056437 Faulkmer, Steven v. MCVDB

Defendants' Motion for Judgment on the Pleadings

Defendants' request for judicial notice is granted.

Defendants move for judgment on the pleadings. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181

Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendants bring this motion on the basis the complaint alleges the date of plaintiff's personal injury was September 27, 2023 and the filing date stamps on the summons and complaint are October 17, 2025. (See Chase Decl. Exh. 1.) Therefore, the time for filing the action has expired, pursuant to California Code of Civil Procedure § 335.1 (establishing a two-year deadline for filing personal injury actions.) (Mot. J. Pleadings at 4.) Plaintiff concedes the complaint is untimely, due to excusable neglect. (See Pl. Opp'n at 6.) Plaintiff also argues for equitable tolling. *See id.* at 3-5.)

The Court of Appeal has addressed the equitable tolling argument with regard to counsel's argued excusable neglect. "Plaintiffs have cited no cases, and we have found none, holding that delay due to attorney neglect qualifies as 'reasonable and good faith conduct on the part of the plaintiff' within the meaning of the equitable tolling doctrine. *Addison v. State of California* (1978) 21 Cal.3d 313, 319. Indeed, the opposite is true. (*Ibid.*; *Cf. Castro v. Sacramento County Fire Protection Dist.* (1996) 47 Cal.App.4th 927, 928-29 (attorney neglect is not a basis upon which to set aside a judgment of dismissal for failure to comply with statute of limitations); *Todd v. County of Los Angeles* (1977) 74 Cal.App.3d 661, 666 (counsel's negligence does not excuse the untimely filing of a lawsuit). (*Bonifield v. County of Nevada* (2001) 94 Cal.App.4th 298, 306 (overruled, in part, on other grounds).)

Defendant's motion for judgment on the pleadings is granted. The motion is granted without leave to amend because plaintiff is unable to cure his untimely complaint as the statute of limitations has passed.

18. S-CV-0056771 Hammick, James Hunter v. Vernon, Jeffrey Jace

Specially Appearing Defendants' Motion to Quash Service of Summons for Lack of Personal Jurisdiction

Request for Judicial Notice

Plaintiff and defendants' request for judicial notice is granted.

Ruling on Motion

Specially appearing defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon and Ann Vernon move to quash service of summons based on lack of personal jurisdiction pursuant to Code of Civil Procedure section 418.10. Plaintiff opposes the motion. Previously, the court granted plaintiff leave to engage in limited discovery on the issue of personal jurisdiction and permitted supplemental briefing.